

TAB 25



Board of Education Report

File #: Res-028-25/26, **Version:** 1**Agenda Date:** 12/16/2025**In Control:** Board of Education

Ms. Gonez - Celebrating National Special Education Day and Calling for the Protection of Special Education Programs and Funding (Res-028-25/26) (Waiver of Board Rule 72)

Whereas, For the 2024-25 school year the Los Angeles Unified School District proudly serves over 64,000 students receiving special education services, 33 percent of which have moderate-to-severe disabilities;

Whereas, As the overall District enrollment declines, the share of students with disabilities has increased over the past two decades from 11.5 percent of the total student population in 2002-03 school year to approximately 16 percent in the 2025-26 school year;

Whereas, The District provides 38 types of services and supports to students with disabilities in order to provide a free appropriate public education;

Whereas, The chronic underfunding of the federal law now known as the Individuals with Disabilities Education Act of 1975 (IDEA) by the federal government places an additional funding burden on states, local school districts, and taxpayers to pay for needed services, and often means using local budget dollars to cover the federal shortfall,

Whereas, In the 2025-2026 school year, the District plans to spend over \$2 billion in special education costs, with the District's federal IDEA funding falling woefully short of Congress' commitment upon IDEA's passage to 40 percent of the additional costs necessary to provide a free and appropriate public education to students with disabilities;

Whereas, The grossly inadequate level of funding for special education at both the federal and state level also does not sufficiently differentiate funding based on the severity of the student's disability and therefore fails to recognize the additional resources required to fully meet the needs of students with moderate to severe disabilities;

Whereas, In 2021 the State established the Special Education Early Intervention Preschool Grant to provide early intervention services and supports to preschool-aged children with special needs who are at risk of falling significantly behind;

Whereas, The majority of the current state funding structure for special education is based on student attendance (AB 602) providing Special Education Local Plan Areas (SELPAs) funding based on their overall student attendance, regardless of how many students with disabilities the SELPA serves or the services they provide;

Whereas, The District proudly operates 13 Special Education and Career Transition Centers which provide students with a robust instructional program that meets each individual student's unique needs and prepares

them and their families for their transition beyond secondary school;

Whereas, Under a new proposal the U.S. Department of Health and Human Services instead of the U.S. Department of Education would assume responsibility for administering federally funded special education programs including the IDEA, raising serious concerns because the shift threatens to undermine critical oversight, accountability, and protections for students with disabilities; and

Whereas, Special education services are further threatened by proposed reductions to medicaid, upon which many school districts depend to fund therapies, medical supports, services for students with disabilities. These cuts would disproportionately harm students with significant special needs and undermine their right to a free and appropriate public education (FAPE); now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District recognizes and celebrates the unique assets and needs of our students with disabilities and is proud to serve them and their families, particularly in light of the shameful historic exclusion of students with disabilities;

Resolved Further, That the District formally recognizes December 2 as National Special Education Day this year and every year and encourages all schools, students, and families to celebrate our children with disabilities and the unique assets they contribute to our school communities;

Resolved Further, That the Board commits to continued advocacy for the protection of the IDEA and related Federal programs serving students with disabilities and for additional resources that will adequately resource and sustain the instructional programs and services for our students with disabilities, such as increasing California's funding allocations to meet the increases in special education costs and Congress increasing the annual appropriations for the IDEA; and, be it finally

Resolved, That the District commits to continuing and expanding upon its regular opportunities for parents and families students with disabilities to engage with the District to provide meaningful feedback, opportunities for continuous improvement and strengthen partnerships and resources.